

26STCP02248 26STCP02248

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-08-24

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Case Number: 26STCP02248 Hearing Date: August 24, 2026 Dept: 309

Superior Court
of California

County of Los
Angeles

DEPARTMENT 17

TENTATIVE
RULING

In Re Petition of:

J.G. WENTWORTH ORIGINATIONS, LLC

Petitioner,

AVA
NUTT

Case No.: 26STCP02248

Hearing Date: August 24, 2026

Petitioner's
petition to approve the transfer of structured settlement payments is
CONTINUED.

A petition for transfer of structured settlement payment rights must comply with Insurance Code §§10136, 10137, 10138, 10139, 10139.3, and 10139.5.

Legal Standard

This

Petition is governed by Insurance Code sections 10134–10139.5. (See also 321 Henderson Receivables Origination LLC v. Sioteco (2009) 173 Cal.App.4th 1059, 1066.) Under Insurance Code section 10137, a transfer of structured settlement payment rights is void unless a court reviews and approves the transfer and finds the following conditions are met:

a.

The transfer of the structured settlement payment rights is fair and reasonable and in the best interest of the payee, taking into account the welfare and support of his or her dependents.

b.

The transfer complies with the requirements of this article and will not contravene other applicable law, and the court has reviewed and approved the transfer as provided in Section 10139.5.

Pursuant

to Insurance Code section 10139.5(a), the Court must make the following express findings as to a transfer of structured settlement payment rights:

1.

The transfer is in the best interest of the payee, taking into account the welfare and support of the payee's dependents.

2.

The payee has been advised in writing by the transferee to seek independent professional advice regarding the transfer and has either received that advice or knowingly waived receipt of that advice in writing.

3.

The transferee has provided the payee with a disclosure form that complies with Section 10136 and the transfer agreement

complies with Sections 10136 and 10138.

4.

The transfer does not contravene any applicable statute or the order of any court or other government authority.

5.

The payee reasonably understands the terms of the transfer agreement, including the terms set forth in the disclosure statement required by Section 10136.

6.

The payee understands and does not wish to exercise the payee's right to cancel the transfer agreement.

The transfer agreement is effective only upon approval in a final court order.
(Ins. Code, § 10139.5, subd. (a).)

Discussion

In exchange for \$27,000, Payee has agreed to transfer and assign the rights for A) 1 payment of \$20,035.49 on February 14, 2028; and B) 1 payment of \$22,103.99 on February 14, 2030. (the Assigned Payments).

In order to approve a transfer of structured settlement payments, the Court must determine that the transfer of the structured settlement payments is fair and reasonable. (Henderson, *supra*, 173 Cal.App.4th at p. 1066.)

In support of the petition, Petitioner makes reference to a number of facts about Payee including their age, family status, financial condition, and employment status. It also includes assertions abouts Payee's reasons for wanting to enter into the transfer agreement. However, despite referencing attached declarations, no such declarations could be located. As such, the Court has no admissible evidence before it to establish any facts about Payee. Clearly, in order to determine whether or not this transfer agreement is fair and reasonable, the Court must have admissible evidence before it as to Payee's age, family status, medical condition, financial condition, and employment

status. The Court must also have a declaration from Payee themselves setting forth the reasons for entering into the transfer agreement.

Petitioner

must submit supplemental materials to provide the missing information identified above.

Based

on the foregoing, Petitioner's petition to approve the transfer of structured settlement payments is continued.

It

is so ordered.

Dated:

August , 2026

Hon. Jon R. Takasugi

Judge of the Superior Court

Parties who intend to submit on

this tentative must send an email to the court at smcdept17@lacourt.org

by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If

a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar.